

1. Line 127 through 135:

127 chapter.

128 (1) Ownership of a geothermal resource derives from an interest in the surface of land[-and
129 not from an appropriative right to geothermal fluids].

129a ~~§→~~ **(2) A person that owns the surface of the land also owns title to the geothermal**
129b **resources, notwithstanding the severance or conveyance of the mineral estate, unless the**
129c **person that owns the surface of the land expressly conveys or reserves a geothermal**
129d **resource by a recorded deed or other instrument conveying title.**

130 [~~{(2) A person that owns the surface of the land also owns title to the geothermal resource,~~
]] ~~←§~~

131 ~~§→~~ [~~{even if the mineral estate is severed, unless the right to the geothermal resource is-}~~] ~~←§~~

132 ~~§→~~ [~~{expressly reserved by a conveyance, contract, deed, lease, or other binding obligation.}~~]
~~←§~~

133 (3) (a) Subsections (1) and (2) do not apply to school and institutional trust lands as
134 defined in Section 53C-1-103.

135 (b) Section 53C-2-401 governs the reservation of a geothermal resource in school and

2. Line 137 through 142:

137 (c) On and after May 6, 2026, for school and institutional trust lands owned as of May 6,
138 2026, the state owns title to a geothermal resource in school and institutional trust
139 lands unless title to the geothermal resource has been expressly conveyed by a

140 ~~§→~~ [~~{conveyance, contract, deed, or other binding obligation}~~] ~~deed~~ ~~←§~~ to

140a another party by the state

141 in accordance with Section 53C-2-401.

142 (4) Subject to Section 73-22-8, a person may not use a geothermal fluid without a water